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Self-perception, laws and identities. Restricting the relevance of psy knowledge among sex-dissident minorities in Argentina

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ABSTRACT
This article problematises self-perception as a notion that structures and legitimises the Gender Identity Law in Argentina, through the analysis of the changing relationships between psy disciplines and gender issues. On the one hand, the Gender identity law enacted in 2012 regulates name changes and registry updates and access to medical interventions (surgical and hormonal). On the other hand, as a result of long-term national and international sex-dissident movements, this law also allows changing legal identities without the need for psychological/psychiatry consultations. Based on the analysis of theoretical perspectives on perception, this article argues that self-perception reinforces the role of the sex-dissident collectives, by questioning and restricting the interventions from psy disciplines in the assessment and legitimisation of certain existences and identities. The unique features of the Argentine context, with its advancements in acquired rights through sexual dissident activism, make this analysis relevant in the light of the changing government discourses and policies. We argue that self-perception and the Gender Identity Law encompasses the relationships between perception and bodily experiences with gendered discourses, processes of subjectivation and social and political recognition.

KEYWORDS
Self-perception; Gender Identity Law; psychotherapies; sex-dissident movements; Argentina

Introduction

Argentina is considered one of the countries with cutting edge gender and sexuality legislation at both regional and global levels. The actions and demands of sex-dissident[1] collectives since the 1960s, in conjunction with international movements and organisations, have achieved access to civil, identity, and labour rights through the enactment of various laws. The Gender Identity Law of 2012 not only broadened the spectrum of identities in how individuals are named in official identity documents and in public and institutional

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[1]The term 'sexual dissidence' refers to those expressions of sexuality that challenge the heteronormative regime and the heterosexual matrix, but also to those normative manifestations of non-heterosexual sexuality. It is a relational category, as it does not imply the mere sum of sexual identities (normative and non-normative), but rather always refers to a sexual norm. In other words, certain practices are considered dissident in relation to a norm that is always shifting and within the framework of a power system (Rubino 2019).

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spaces, but also ensures by law access to surgical and hormonal treatments, free healthcare consultations and interventions, without the need for psychological and/or psychiatric diagnoses (Del Monaco 2023).

The aim of this article is to problematise self-perception as a notion that structures, grounds, and legitimises the Gender Identity Law in Argentina. Specifically, the particularities of self-perception are examined in relation to dominant theoretical perspectives on perception (Bourdieu 1990; Ingold 2000; Merleau-Ponty 1984; Stoller 1989), in their links to the histories and actions of national and international sex-dissident movements, and in relation to radical changes in the roles of psychological disciplines in the assessment and legitimisation of certain existences and identities (Tajer 2012, 2021). Additionally, it is analysed how self-perception and the Gender Identity Law are shaped by forms of governance, specifically how they enable certain modes of existence, their intelligibility, and feasibility.

To begin, the analysis focuses on the notion of self-perception in light of the various perspectives in social sciences and anthropology regarding perception in general. Thus, we argue that self-perception encompasses different dimensions: the relationships between perception and bodily experiences with gendered discourses and narratives, processes of subjectivation, relational ethics, and social and political recognition. Subsequently, we examined how this notion not only challenges the traditional ways in which these psychological disciplines have pathologized certain minority experiences and identities, but also their role as arbiters to endorse and legitimize their existence, as well as their social and political legitimacy. Different ways of naming bodily experiences and transitions around gender identity cease to be categorised as pathological issues and become part of the forms of perception that individuals have of themselves. Furthermore, the analysis of Argentine legislation and its underlying notion of self-perception is contextualised within the histories and characteristics of sex-dissident movements, the struggles to legitimize their rights, and the forms of governance and political regimes in which they are immersed. Considering that these activism efforts have been shaped by other types of political and social struggles in the Southern Cone, the demands for rights have been primarily directed towards the state, its laws, and policies. Finally, due to the historical conflicts between forms of activism, different governance structures, and political regimes, it is explored how the turn towards extreme right-wing neoconservatism is increasing vulnerabilities, violence, and neglect for individuals and minorities that legislation and self-perception legitimize and protect.

Activisms, legislations, and legitimised self-perceptions

Argentina has become one of the unavoidable reference points in Latin America for activisms and legislations regarding gender-sexual rights. The complex history of sex-dissident movements, organisations, and activisms in Argentina has been mainly characterised by linking experiences of sexuality to repressive-regulatory practices of the state, appealing to the language of human rights and inequalities in expanding neoliberalism to structure their demands for recognition (Figari 2017). Unlike legislations in other countries, the Gender Identity Law of 2012 is considered cutting-edge internationally and regionally because it follows the Principles of Yogyakarta (2007) and applies international human rights norms to gender-sexual issues. Among the most radical

changes that this legislation includes, self-perception stands out as a notion that underpins gender identity and the deactivation of the role of psychological disciplines (psychiatry, psychology) in this matter. Even considering its unprecedented relevance, the notion of self-perception, its characteristics, and consequences have been scarcely problematised.

Self-perception is contextualised and differentiated from the main orientations and debates about perception in general (Bourdieu 1990; Ingold 2000; Merleau-Ponty 1984). It also assumes particular characteristics in social sciences and anthropology perspectives regarding bodily experiences, senses, and social and linguistic categorizations (Butler 2005, 2007; Hacking 2006; Martin 1994; Rose 2012). Considering these developments, the aim of this work is to problematise self-perception as a notion that structures the foundations of legislation on identity and genders in Argentina. While the problem of perception in general finds its foundation in various theoretical orientations of social sciences and psychological disciplines, in this work, self-perception is analysed as a conceptual, political, and legal resource that condenses theoretical perspectives and sexual dissidence activisms, while at the same time avoiding mediations by knowledge and experts (psychologists, biomedical professionals, etc.) that review, validate, legitimize, and legalise certain modes of existence (Butler 2005, 2007). Particularly relevant is the abrupt modification of the theoretical-practical roles of psychological disciplines (psychiatry, psychology, etc.) regarding heterosexual binary models, pathologizing diverse minority and abject identities, and the latter's need for validation to guarantee the legitimacy and legality of certain transformations and access to the resources to carry them out.

This work argues that the importance of the notion of self-perception in legislation and in the domains and practices related to gender identities has disrupted the traditional psycho-medical-legal equation well-kept throughout the twentieth century. That is, transformations in one of these fields (the legal one) enter into contradiction and dispute with a series of knowledge and ways of naming and intervening characteristic of health spaces. At the same time, these demands have been situated as part of biographical narratives of collective foundation and sex dissidence (Butler 2005). Therefore, self-perception as a central trope of the extensive diversity of gender narratives is understood as a compromise solution between academic arguments, activisms, discourses of affected individuals and collectives, legislations, public health policies, and manifestos of international collectives. However, the privilege of self-perception confronts dominant models of subjectivation in social sciences and psychological disciplines and only recovers certain theoretical perspectives that provide intelligibility to the approaches and struggles for differences in experiences and social practices that it includes.

Furthermore, the implementation of legislation focused on self-perception has shaken the dominant and classical approaches that link self-perceptions, categorizations, and norms. Unlike most legislations on gender identities in different countries, the privilege of self-perception in legislation and, consequently, in the Argentine reality questions and dismantles the classical equation that links legitimatised gender categories, self-identity, and social and human recognition. Through embodied experiences and biographical narratives outlined and expressed in collective movements, identity practices based on self-perception have destabilised and diversified dominant models of subjectivation, generating retreats and criticisms in certain domains of knowledge-power and in everyday realities (Barbieri et al. 2014; Roudinesco 2023; Tajer 2012, 2021).

Finally, we argue that in current contexts, marked by a strong neoconservative imprint, the legitimacy and recognition sought through the association between embodied self-perception and legislation are being exposed to new forms of social (dis)recognition, neglect, and violence. That is to say, while these policies grant legitimacy and legality to certain sectors of the population, in neoconservative contexts, new discourses and violence related to the construction of identity as something inherent to the individual and based on their 'choices' re enabled, while different political, social, and media sectors continue to operate within traditional and heteronormative domains. In other words, in neoconservative policies, validation through self-perception is confronted by social sectors that question self-perception as a guarantee of identity, even if it is legally and socially legitimised. Thus, while self-perception appears as a key notion in the ways of experiencing identity with recognition and legitimacy from the state, transformations in recent times demonstrate how these achieved conquests are susceptible to new forms of violence, discrimination, and exclusion that compromise the viability and intelligibility of sex-dissident collectives in other ways.

Genealogies of (self-)perception

The approach to self-perception as a problem is contextualised within the main perspectives and debates on perception in social sciences and anthropology, specifically in certain mainstream analytical domains. On one hand, the problem of perception, its universality and particularity, its links to the senses, linguistic categories, modes of thinking, and knowledge have defined a domain of research from the very origins of social sciences and anthropology (Bourdieu 1990; Ingold 2000; Levi Strauss 1966; Merleau-Ponty 1984; Stoller 1989). While classical empiricist and rationalist perspectives posit the causes of perception either in the world or in the mind, for constructivist approaches, people construct their reality through processes that integrate what is perceived into shared socio-cultural categories systems (Stoller 1989). On the other hand, with the resurgence of cognitive sciences and neuroscience, perception-cognition models have become more complex, occasionally integrating neuronal models into arguments and explanations (Gardner 1985). However, for other approaches centred on social practices, cultural knowledge expressed in patterns of thought-feeling generates dispositions in relation to their environments (Bourdieu 1990). In turn, with the dwelling perspective on perception, Ingold (2000) questions the tradition that understands the subject as an autonomous, isolated unit delimited by its skin, where perception is restricted to processes related to one's mind and senses. Instead of understanding it as an interior or private process, linked to mental and/or psychic processes that organise sensory materials perceived through the senses and then expressed publicly on the outside through language, in perception according to Ingold, senses and meanings arise in engagement with everyday activities and sensory education oriented towards specific environments (Ingold 2000).

Furthermore, developments on bodies and embodiment have gained relevance in addressing perception in terms of sensitivities and dispositions (Bourdieu 1990). When arguments about perception include bodily experiences in contexts of sociability and specific environments, it becomes necessary to abandon the Cartesian argument that makes the mind the agent that imposes form and meaning on individual bodily experiences. From the phenomenology of perceptual experience and the embodiment

paradigm, the perceiving subject and the world arise simultaneously in a movement that implies actions specific to being in the world (Merleau Ponty 1986). Contrary to considering the body as an object or means of subjectivity, Merleau-Ponty's approach became a reference point for understanding perception through the pre-objective existence condition in embodied immersion in the environment. According to Rubin (2003) and García (2009), Merleau-Ponty's phenomenology of perception, the body and embodiment becomes an indispensable resource for elucidating these processes. Therefore, Merleau-Ponty's perspective, which links perception with corporeality in being in the world, makes it possible to both address conflicts between gender identity and bodily experiences and legitimize the embodied knowledge of perception subjects.

From these developments, the relationships between perceptions and linguistic and symbolic categories are revisited and diversified. For some perspectives in social sciences and anthropology, collective cultural and/or symbolic categories pre-exist and organise individual perceptions, while for others, perceptual processes take place in intersubjective relations, in contexts of sociability. Additionally, there are other approaches that privilege individual perceptual experiences, understood either in terms of senses, mind, brain, or psyche, which are shaped by cognitive categories and/or social representations. However, from the perspective of embodiment, perception is a pre-objective and pre-conscious experience, meaning that it is only categorised, objectified, and expressed in linguistic terms afterward, with meanings and significances generated in its becoming (Merleau Ponty 1986).

Based on these perspectives, the notion of self-perception is situated at the intersection of discursive and narrative productions, embodied experiences, processes of subjectivation and recognition, political and social legitimisation, its legal status within the LGBTQ + community, and relational ethics in society as a whole. When focusing on gender identity categories, the issue of perception and self-perception becomes complex. Specifically, when the problem includes individuals who do not fully or partially identify with the categories assigned at birth and/or available in a society within a specific historical-political context, it encompasses not only transgender and non-binary minorities, gender fluid and genderless individuals, but also non-conforming women and men.

As Butler has analysed regarding self-determination in gender issues, individuals rely on the support of the social world to exercise agency regarding which bodies and genders they assume and transform, so modifying the institutions that regulate normativities is a condition for self-determination to take place. Following this argument,

> one only determines 'one's own' sense of gender to the extent that social norms exist to support and enable that act of claiming gender for oneself. One is dependent on this 'outside' to lay claim to what is one's own. The self must, in this way, be dispossessed in sociality in order to take possession of itself. (Butler 2004, 7)

Additionally, the ways in which gender is made and unmade through regulations make certain modes of existence habitable, livable, or viable. Specifically, when analysing bodily autonomy as the focus of demands from sex-dissident minorities, feminists, and anti-racist movements, Butler analyses the paradox involving this notion, when social existence includes interdependence and vulnerability among each other, and involvement with 'lives that are not our own'. In this sense, although self-perception appeals to an individual and personal instance of the subject to guarantee recognition through

legislation, the foundation of these demands and the ways to achieve them arise and are sustained through social struggles from LGBTQ+ organisations and activism. Furthermore, for this recognition to be possible, beyond being inscribed in the legal realm, it requires others to validate such criteria of self-perception.

Considering these arguments, the analysis of self-perception as a notion that guarantees, through the legal-state apparatus, the exercise of embodied experience as the basis of gender identity involves new challenges and paradoxes for its understanding and practice. When self-perception is guaranteed by institutions and regulations, certain processes shift, demands and rights are modified, and violence and neglect mutate. In this case, echoing what was mentioned earlier, in certain contexts of neoconservative policies, validation through self-perception is confronted by social sectors that question this notion as a guarantee of identity (despite there being laws recognising it.) Thus, violence deepens, and discussions and proposals that seemed settled and unquestioned around the recognition of sex-dissident identities are revisited; discussions with essentialist and biological views are resumed, and the effects of certain normative discourses on the production of subjectivity are reconsidered.

Unlike perception in general, whose models of understanding are mostly anchored in academic perspectives and debates, self-perception finds its anchoring sites and/or production mostly outside academia or, in collaboration with it, through sex-dissident activisms. On one hand, self-perception in the legal-normative-social apparatus eludes the academic complexities of self-awareness, reflexivity, unconscious subjects, or cognitive processes. On the other hand, while the problem of perception finds its foundation in various theoretical traditions, the main arguments about self-perception seek to bypass mediations by knowledge and experts who review and validate them, specifically those orientations within the social sciences and psychological disciplines (psychiatry, psychology, etc.) that promote dominant heterosexual binary models and the pathologization of diverse abject identities.

Psy knowledge, diagnostic categories, and forms of pathologizing

As in other countries in the Latin American region, in Argentina, psychological disciplines (psychologies, psychoanalysis, and psychiatry) have functioned as expert technologies that legitimize and validate the existence and rights of sex-dissident individuals through knowledge, modes of naming, and treatment (Epele 2016). The review and problematization of processes of pathologization in diagnoses, therapies, and interventions of these approaches have led to modifications not only in the theoretical orientations that underpin them but also in their roles in legislations. With the inclusion of self-perception in Argentina's Gender Identity Law,[2] the place and relevance of psychological disciplines in the assessment and intervention of certain sex-dissident identities, and subjective and bodily experiences have been radically altered (Del Monaco 2023).

From the perspectives of Foucault and post-Foucauldian authors, psy expert knowledge and practices have generated discourses and an understanding legitimised by science that grant the authority to inform and standardise the ways we live, feel, and

[2]It is important to mention that prior to this law, the National Mental Health Law No. 26.657 states in Article 3(c) that any kind of diagnosis based on sexual identity is prohibited.

think in certain historical-geo-political contexts (Foucault 2008, 2018; Rose and Miller 2008). When population governance articulates with self-governance, certain expert knowledge and technologies that respond to specific gender mandates sustained in the female/male binary become mediations that legitimize some existences and subjects as real, livable, and viable, while others are not. Through legal-medical correlates, these legislations and regulations are legitimised and grant a certain status to certain subjects and practices, to the detriment of others. In this sense, and following Rose, these expert practices not only correspond to systems of truthfulness that provide intelligibility, languages, categories, and interventions for ailments and sufferings through tutelary, unequal, and pathologizing relationships but also normalise how life should be lived and conducted (Rose 2012).

Regarding classifications and denominations, Hacking analyses the processes of 'making up people' (Hacking 2006). As a result of a double movement, he investigates the modifications of categories in light of both social and political transformations and the ways in which they are contested by those affected by them. While certain classifications and categories create classes of people, the latter respond to these denominations, transforming the classifications to which they are subjected. The possibility of a 'bottom-up' response and modification of people classified by certain categories depends on the type of knowledge and its consequences for people's lives. As Hacking explicitly states, psychiatric categories have limited possibilities of being contested and modified by the people subjected to their criteria. From these languages, pathologizing and diagnostic criteria are enacted through discourses and clinical practices (Preciado 2021). Therefore, when certain subjectivities have been categorised by different psy and legal languages (in terms of 'mentally ill', 'gender dysphoric', 'psychotic', 'perverse', 'unresolved Oedipus', or 'penis envy', and the like), the confrontation with these categories by the affected individuals themselves becomes part of the 'pathological' experiences that these diagnoses include.

It is in this sense that certain authors have questioned how medicine, psychiatry, psychology, and psychoanalysis have participated in the processes of objectification and normalisation of sexual minorities over the last two centuries. Thus, psy diagnostic production, which pathologizes identities that do not conform to the heteronormative matrix, has been addressed in various ways.

From psychiatry, the development of diagnostic manuals and intervention techniques operates within dominant modes of subjectivation, perceiving, and experiencing bodies. In fact, the transition from traditional psychiatry to the DSM also indicates the shift from the language of mental illness and madness to the language of 'behavioral disorders' that seek to pathologize and normalise certain bodies (Preciado 2021, 83). In this sense, the conflict between psy knowledge and sexual dissidence activism makes it evident that diagnostic categories, far from expressing a natural order, are discursive resources of political and social power devices (Grau Mas 2017). Alongside modifications and new regulations regarding multilateral organisations and institutions such as the World Health Organization (WHO), certain organisations like the International Campaign for the Depathologization of Trans Identities *Stop Trans Pathologization* (STP-2012) have among their objectives to problematise and dismantle psychiatric control devices. For example, a significant step was taken by advocating for the elimination of pathologizing categories related to trans experiences from the chapter on mental disorders of the

ICD-11 (Farji Neer 2020). The same happened with the DSM, a manual that has undergone modifications over time, and indeed, research has been conducted on the leading role played by movements and advocacy organisations in that period in the disputes with the American Psychiatric Association (APA) to remove homosexuality as a disease in 1973 (Drescher 2010). Furthermore, discussions about the diagnosis of gender dysphoria have resumed in various parts of the world, drawing on previous discussions to remove homosexuality from the DSM II, and tensions and disputes between the academic, scientific fields, and LGBTQ+ activisms have been mentioned in these modifications (Del Monaco 2022; Grau Mas 2017).

In relation to traditional psychoanalysis, Preciado analyses how the transition of gender and the assertion of a non-binary gender not only challenges normative notions of masculinity and femininity but also the categories of heterosexuality and homosexuality with which normative psychoanalysis and psychology work (Preciado 2021, 95). Moreover, given the significance of psychoanalysis in Argentina and other Latin American countries, its structural and binary theories of the psychic apparatus have been shaken and modified by the emergence of theoretical-political perspectives, and LGBTQ+ activisms and movements in three main ways. Firstly, in orthodox Freudian and Lacanian orientations, these revisions have been limited to the rupture of the intimate and ancient connection between 'homosexuality' and perversion. Secondly, some authors have questioned the patriarchal, heteronormative, and colonial gaze of classical psychoanalysis (Martínez and Bolla 2020), promoting post-patriarchal clinics that modify certain key concepts of the theory because they are tied to binary and unequal gendered approaches (e.g. Oedipus complex) (Tajer 2012). Thirdly, we find the majority of ongoing revisions in psychoanalysis that articulate classical theories and notions with dominant decolonial gender critical perspectives in the global South (Tajer 2021).

In this context, and drawing from Hacking's theory of dynamic nominalism, it is possible to identify how new languages and categories not only alter the ways in which certain individuals (and collectives) come to exist, but also how they relate to themselves and others based on these forms of naming (Hacking 2006). As a process that develops identity categorizations and denominations from embodied subjective experiences, self-perception in conceptual-legal terms differs from the critical approaches that have dominated the social sciences. Moreover, following the enactment of the law, this notion allows for the modification and restriction of the roles of psy technologies and the legitimisation and assurance of these embodied identities and experiences. Thus, the psy-biomedical-legal equation is deconstructed, and the leading role of psychological disciplines is minimised, opening up new topologies and processes that, centred on individuals themselves, assemble experiences, bodies, perceptions, names, and identities. These self-narratives focusing on gender and sexuality (Butler 2005; Mattingly 1998) challenge dominant models of subjectivity and are amplified by the political discourse of collective organisations in public spheres. However, Butler emphasises the importance of considering that gender is produced through identificatory and performative practices in which the normative and social aspects are articulated, i.e. the production of certain norms and laws that ensure and enable certain recognitions. Thus, 'identifying as' and 'accounting for oneself' is accounting to someone for that self whose possibility of existence depends on the recognition of the other (Butler 2005). In this process of recognition,

the articulation of psychological disciplines with the legal domain and with state policies is central because through regulations, certain bodies and identity processes are recognised or sanctioned. The possibility of shaping a narrative and narrating modes of self-perception is linked to the possibility that certain notions become part of socially accepted discourses. Therefore, the ways of naming oneself depend on the criteria of recognition in societies, and, given that there is a law guaranteeing a certain identity and forms of self-perception, individuals can appeal to it to claim this recognition.

Sexually dissident activism and its struggles for recognition

The sexually dissident movements in Argentina, since the late 1960s, have had a history of struggles and organisation that, while evolving and acquiring specific features according to socio-historical contexts, have been characterised by a politicisation of sexuality that paved the way for theoretical discussions shared by global movements (Barrancos 2014; Figari 2017). In other words, from their inception, a pivotal aspect underlying the formation of these collectives lies in the struggle for recognition of identity and access to rights vis-à-vis the State.

In broad terms, four moments of activism can be identified in validating demands vis-à-vis the State, which reflect internal modifications and their relation to different types of government/political regimes, social discourses, conceptualizations of corporeality, narratives surrounding rights access, and the role of the State in such processes. Firstly, there's the pre-military dictatorship context of the late 1960s when organisations – mainly comprised of homosexual men – began to emerge, such as the Homosexual Liberation Front, which, from its inception, was immersed in the intense activism discussions of the 1970s and 1980s in Latin America, characterised by issues of class and specific struggles – namely those of women, indigenous peoples, homosexuals, lesbians, trans individuals, and Black communities (Figari 2017). These organisations were interrupted during the dictatorial period (1976–1983) and resurfaced with the return to democracy, framing their narratives within the discourse of human rights prevalent in that era (Barrancos 2014). However, despite the democratic context, police violence, raids, and pathologizing declarations persisted. In this second moment, with the onset of the HIV/AIDS pandemic, the Argentine Homosexual Community (Comunidad Homosexual Argentina, CHA) gained prominence by collaborating with other civil society and grassroots organisations to promote and ensure access to healthcare systems and minority rights. Amid these conditions of social and healthcare emergency, two concurrent processes unfolded: firstly, the discrimination and stigmatisation experienced by sexually dissident collectives, and simultaneously, an increased visibility for certain identities, and State intervention through public health policies for HIV/AIDS (Pecheny 2001). During this period, a narrative predominated regarding bodies as a means to attain social and political recognition, where the experiences of transgender individuals were understood as being 'trapped in the wrong body'. Subsequently, theoretical developments and modifications in activism enabled alternative ways of naming, debating, and inhabiting identities, as these expressions reproduced psychopathologizing categorizations of psychology and psychiatry revolving around the binary notion of two defined sexes (female/male) (Theumer 2020).

A third moment emerges in the early 1990s, characterised by the emergence and increase of multiple social actors demanding autonomy, questioning the ways in

which bodies are defined, and the construction of subjects in social and political spaces increasingly fragmented by neoliberal expansion, privatisation policies of public assets, and economic deregulation (Figari and Ponce 1999; Svampa 2005). For instance, the first lesbian organisations emerged, reclaiming said category as a political identity, alongside organisations of transgender and transsexual individuals advocating for access to rights such as healthcare, housing, and education. In this scenario of expanding exclusionary policies and social vulnerability, mobilizations intensified – the first Pride March in Argentina occurred in 1992 – and organisations – such as the Argentine LGBT Federation in 1996 – articulated demands to the State for the recognition of rights linked to gender identity. Simultaneously, violence against these collectives persisted. In fact, one of the main demands of transgender activism focused on combating discrimination, particularly the repeal of police decrees, reports of police harassment, and vulnerability and insecurity when accessing healthcare services.

In contrast to previous periods, in the new millennium, demands revolved around certain unified claims related to identity recognition policies. A series of actions and demands towards the State emerge, initially resulting in local recognition such as civil union laws in some provinces and the approval of the Contraventional Code in the City of Buenos Aires. Although aimed at condemning gender and sexual orientation discrimination, this code also targeted and penalised the sex work of transgender individuals in unauthorised public places (Pecheny and Petracci 2006). In 2010, after several attempts, the same-sex marriage law was enacted, followed by the gender identity law (Law 26,743) two years later. Among other provisions, this law grants free access to surgical interventions and/or hormonal treatments. Moreover, the significance and centrality of this law lie in the articulation between activism and international bodies (such as the Yogyakarta Principles in 2006), where, by returning to these international legal standards that all states must comply with, there is a shift in demands towards the Argentine State, resulting in a legal recognition centred on individual decision-making and decentralised from expert psychological knowledge or judicial authorisation. That is, it allows the change of registered sex and name to be carried out through an administrative procedure without requiring any prior authorisation, whether from a panel of experts or a judicial ruling (Farji Neer 2016, 131).

Therefore, unlike previous scenarios, in this context, self-perception takes on a central role, leading to two fundamental achievements. Firstly, this shift allows the individual to be the sole validator before the State by generating a name, attire, forms, and experiences with their corporeality – which may or may not include hormonal and/or surgical interventions. Secondly, self-perception triggers a displacement of expert psychological knowledge when naming identity processes as pathological matters subject to evaluation before the individual's decision in their corporeal and identity experience.

Similarly, some of the most recent reforms built upon the advancements facilitated by the Gender Identity Law include the labour quota for transgender and gender non-conforming individuals in 2020, and the recognition of identities beyond the female/male binary by incorporating the 'X' option in the national identity document in 2021. It is worth noting that throughout time, sexually dissident activism has appealed to different languages and narratives with the aim of achieving recognition from the State. Until the enactment of the Gender Identity Law, these efforts focused on achievements related to specific rights and communities. However, this law, centred on

self-perception as the axis that structures its formulation, challenges the female/male binary and the binary and essentialist forms present in various expert knowledges. Following Butler, no political revolution is possible without a radical change in the conception of what is possible and real (Butler 2007, 28). In this sense, this conception of the real is determined by what the subject says they are, and those words begin to be validated and recognised by a State that legitimises such a way of self-perceiving before public and private entities of the nation. Thus, self-perception as a category that emerges from collective dynamics is part of a way of naming oneself and presenting oneself to others, which includes a type of legal recognition that seeks to expand recognitions.

However, in recent years, these rights have become part of a field of contention among different sectors, some of which associate them with 'ideological' issues. This idea of 'gender ideology' emerged in the 1990s when the Pontifical Council for the Family warned that gender was a threat to the family. Later, in different parts of the world, right-wing governments, religious groups, and political movements began presenting gender as a threat to childhood, the normative family, and also as ideas that oppose science and/or religion, denying nature and the difference between the sexes (Butler 2024).

In other words, although the modifications generated by the law, specifically those related to self-perception, have sparked some debates and criticisms, during the electoral campaign and following the assumption of the new government in this country in 2023, discourses and conflicts escalated in the public domains, enabling discursive practices and confrontation against minorities that seemed to have become erratic and casual. In February 2024, the government not only prohibits 'inclusive language' (i.e. using the '@' symbol, the '-e' ending, and the 'x' for gender-neutral constructions), but also the inclusion of the feminine form in public administration and State documents, on the grounds that gender perspectives have been used as a 'political business' (Ámbito Financiero, February 27, 2024; Clarín, February 27, 2024; La Nación, February 27, 2024). Considered locally as a strategy of neoconservative governments for the cultural war against what they call 'gender ideology'. In this sense, representatives of feminist, LGBT, academic, and judicial activism are denouncing that this resolution implies an attack on freedom of expression and the right to identity guaranteed by Argentine laws (Página 12, February 28, 2024). Thus, sexually dissident activism has been from its inception permeated by different forms of violence, discrimination, and exclusion, both from the state and from sectors of civil society. Therefore, beyond the enactment of laws and transformations in the social and legal spheres, it is necessary to remain vigilant against hate speech and discriminatory narratives that have intensified in recent times.

Conclusions

Argentina has succeeded in becoming a benchmark for legislation recognising gender and sexuality rights. The Gender Identity Law of 2012 has radically transformed certain processes of subjective legitimisation by being structured around the notion of self-perception. On the one hand, this category deactivates the role of psychological disciplines (psychiatry and psychology) as unavoidable and potentially invalidating mediators. On the other hand, the notion of self-perception has altered the ways in which embodied experiences legitimize self-recognition and the narratives that shape it, as a means of accessing rights vis-à-vis the State. Through this legislation, the process of depathologizing dissident identities is legitimised, breaking away from the

traditional biomedicine-psychology-legislation equation that normalised and regulated it. However, despite disputes among orientations within psychological fields, legal intervention enables and legitimises these identities beyond the discussions and contradictions that arise within psychological theories and perspectives. Confronting biologistic, essentialist, and cis-heteronormative approaches, this type of legislation has also opened up social discussion and debate about the production of other identities (fluid and without gender) that break with the classic coordinates of what is understood and experienced as 'sexually dissident'. Therefore, the 'self-' prefix in legislation emphasises a process of decentering and questioning in the production of feelings, knowledge, and narratives in the particular experiences of the individuals concerned. However, these processes are not exclusively individual but are integrated and structured in relation to discourses and narratives available as shared by certain collectives and minorities. These forms of knowledge production, however, are not restricted to transgender individuals or the gender sphere, but seek to generate arguments and responses to more general spaces that intersect with sexualities, corporealities, identities, suffering, oppression, and marginalisation.

However, when certain governments, such as the current one, question or prohibit certain rights guaranteed by this law, they directly or indirectly promote and encourage discourses, practices, and discriminatory manifestations towards those recognised and legitimised by the legislation. While confrontations and discrimination against sexually dissident activism are part of the history of struggle movements in different social and political contexts, in certain scenarios, there is an intensification of discourses and practices that enable profoundly exclusionary statements. Finally, with the recent and incipient questioning of self-perception by different power sectors, echoed by reactionary sectors of civil society, it becomes necessary to open the inquiry for future studies about laws and the features attributed to them – 'immutable', 'unbreakable', and such – when they become the target of various social movements in diverse historical-political-social contexts. Moreover, this analysis raises the following questions considering the current contexts highlighted. First, the exacerbation of political discourses centred on 'gender ideology' does not foster debates that can problematise and improve the living conditions of communities. In this sense, a continuous review of the articulation between laws and the demands of sex-dissident activism is necessary. In contexts where the questioning of rights prevails, along with the dismantling of health services and precariousness of working conditions, it becomes essential to investigate the effects of this politics in the daily lives of certain communities.

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